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U.S. DISTRICT COURT E.D.N.Y.
★ FEB 03 2012 ★

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

BROOKLYN OFFICE

-----X
TERRANCE DAVIS and TIFFANY YOUNG,

Plaintiffs,

COMPLAINT

-against-

CV12- 518

THE CITY OF NEW YORK, MICHAEL
DELVALLE, DANIEL HERNANDEZ,
and JOHN and JANE DOES 1-5,

PLAINTIFFS DEMAND
A TRIAL BY JURY

Defendants.

**MAUSKOPF, J.
REYES, M.J**

-----X
Plaintiffs Terrance Davis and Tiffany Young, by their attorneys, Reibman &
Weiner, as and for their Complaint, hereby allege as follows, upon information and belief:

PARTIES, VENUE and JURISDICTION

1. At all times hereinafter mentioned, plaintiff Terrance Davis was an adult male resident of Kings County, within the State of New York.
2. At all times hereinafter mentioned, plaintiff Tiffany Young was an adult female resident of Kings County, within the State of New York. Tiffany Young is the mother of plaintiff Davis.
3. At all relevant times hereinafter mentioned, defendant City of New York ("New York City"), was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department ("NYPD"), and their employees.
4. At all relevant times hereinafter mentioned, defendant Michael Delvalle

(Tax 936463), was an adult male employed by the City of New York as a member of the NYPD. Defendant Delvalle is sued herein in his official and individual capacities.

5. At all relevant times hereinafter mentioned, defendant Daniel Hernandez (Tax 936751), was an adult male employed by the City of New York as a member of the NYPD. Defendant Hernandez is sued herein in his official and individual capacities.

6. At all relevant times hereinafter mentioned, defendants John and Jane Does 1-5, were individuals employed by the City of New York as members of the NYPD whose identities are unknown. The Doe defendants are sued herein in their official and individual capacities.

7. This Court has jurisdiction of this action pursuant to 28 U.S.C. §§ 1331, 1343 and 1367, and 42 U.S.C. § 1983.

8. Venue is properly laid, pursuant to 28 U.S.C. Section 1391, et seq., in the Eastern District of New York, where the plaintiffs and defendant City of New York reside, and where the majority of the actions complained of herein occurred.

RELEVANT FACTS

9. On or about February 20, 2009, at or around 10:25 p.m., plaintiff Davis was lawfully walking on Myrtle Avenue near Walworth Street in Kings County, New York.

10. As plaintiff walked along Myrtle Avenue, he encountered the defendants, who, without a reasonable basis to do so, stopped, questioned, and searched plaintiff.

11. Defendants' search of plaintiff yielded no evidence of drugs or

contraband.

12. Defendants informed plaintiff that he fit the description of another individual suspected of criminal activity, and asked plaintiff if his name was "Jamal."

13. Plaintiff, who was not engaged in any suspicious activity, informed defendants that he was walking home from a neighborhood store and was not named "Jamal."

14. Despite the absence of any evidence of wrongdoing on the part of plaintiff, defendants formally arrested plaintiff, placed him in a police vehicle, and confiscated his wallet and keys.

15. After arresting plaintiff and placing him in the police vehicle, rather than take plaintiff directly to the precinct to begin processing, defendants drove immediately from the scene of the arrest to plaintiff's apartment, where he resided with his mother, plaintiff Tiffany Young.

16. Once at plaintiff's residence, defendants Delvalle, Hernandez, and the Doe defendants used the keys taken from plaintiff as a result of the illegal search and arrest, entered plaintiff's apartment over his protestations, and searched plaintiff's home for evidence of criminal activity. Plaintiff Young was not home at this time.

17. Defendants searched plaintiff's apartment without permission, without a warrant, and without probable cause to perform the search, and did so for their own unlawful motives, including, but not limited to, their desire to cover up their illegal and unlawful activity and to increase their arrest numbers.

18. During the search of the apartment, defendants found a gun and a small amount of cocaine.

19. After the unlawful search of his home, plaintiff was then transferred to a local area precinct station house, where he was held for several hours, before he was transferred to Kings County Central Booking, where he was held for several more hours.

20. As a result of defendants' false statements, and failure to correct their fellow officers' false statements -- the Kings County District Attorney ("KCDA") chose to proceed with the prosecution of Terrance Davis.

21. Several hours after the defendants recovered contraband from plaintiff's apartment, plaintiff was arraigned based on the criminal complaint in which Defendant Delvalle made various false factual allegations, including, but not limited to, allegations that plaintiff was observed on the street in possession of a loaded weapon, and that this weapon, some ammunition, and crack cocaine were recovered from plaintiff's waistband when he was on the street. The criminal complaint specifically charged plaintiff Davis with various alleged criminal acts pursuant to these false allegations, including criminal possession of a weapon in the second degree, criminal possession of a controlled substance in the seventh degree, criminal possession of a weapon in the fourth degree, and possession of ammunition.

22. The defendants made no mention in the complaint, nor, upon information and belief, did they tell the prosecutor's office, that they had entered plaintiff's residence, much less that the alleged contraband was recovered inside the premises after the

arrest and subsequent entry.

23. Plaintiff was then transferred to Riker's Island where he was held for about five more days before he was able to make bail and released. Bail was eventually exonerated when the charges against plaintiff were dismissed on February 17, 2010.

24. Upon information and belief, at no point prior to the indictment of plaintiff did any of the defendants tell the prosecution that they had entered plaintiff's residence or that they had recovered the alleged contraband in the apartment, rather than on the street where they had first seized plaintiff.

25. The defendants deliberately chose to lie about these facts and to withhold the truth because they understood that their conduct -- i.e., the initial seizure and arrest of plaintiff, and subsequent warrantless entry -- was, individually and collectively, unconstitutional and would require, at a minimum, the dismissal of the charges against plaintiff Davis.

26. Rather than admit to knowingly engaging in misconduct, the defendants chose to lie to the prosecution. In order to sustain their initial fabrications, they later repeated these lies to the Grand Jury and, eventually, the New York State Supreme Court.

27. The KCDA, proceeding based on the defendants' oral and written statements, and in the absence of any statements to the contrary by any of the other defendants, presented the case to a Grand Jury.

28. Defendants Delvalle and Hernandez each appeared before the Grand

Jury and testified, in sum and substance, to the same materially false factual allegations set forth in the criminal complaint to justify their stop of plaintiff Davis and recovery of contraband from Davis on the street pursuant to the initial stop.

29. Neither defendant told the Grand Jury about the detour to the plaintiff's apartment, nor did they tell the Grand Jury that they did not recover any contraband until after they had entered the apartment.

30. As a result of the defendants' continuing falsification of evidence and perjury, the Grand Jury returned an indictment of Terrance Davis on felony narcotics and weapons charges.

31. Plaintiff Davis was then forced to make several court appearances over the course of the next year pursuant to these false allegations.

32. Pursuant to a motion by Mr. Davis, the court held a Huntley Hearing to examine the lawfulness of the defendants' seizure of the contraband.

33. During the course of the hearing, the defendants admitted finally that they had gone to the plaintiffs' residence, which was contrary to their testimony before the Grand Jury.

34. More precisely, on cross-examination, defendants Delvalle and Hernandez eventually conceded that had gone to and entered plaintiff's apartment, but they purport to have done so to recover plaintiff's identification, that plaintiff offered his house keys to them, and to their supervisor and sergeant who was also present, that the plaintiff gave them permission to enter his home, but that he did not tell them where to find the

identification.

35. This testimony, meaning the acknowledgment that the officers had gone to plaintiffs' residence, was in stark contrast to their prior testimony before the Grand Jury. As Justice Joel Goldberg noted at the close of the hearing, "officer Delvalle actually testified in the Grand Jury they went straight to the precinct which just wasn't true."

36. The Court was troubled by this testimony and the fact that the defendants' own testimony at the Huntley hearing was internally inconsistent. More precisely, Justice Goldberg stated:

Again, this is a case where the police credibility is placed in issue. Also what's strange is that the officers are going back to the apartment to get identification, you think they would ask the defendant where can I find it. We're going back to give the defendant a break, the defendant could say it's in my wallet on my dresser, he could tell them where to find it. I asked the officer did he tell you where to look for it and he said no or I don't recall. So you have the police going back to the apartment to look for identification and they don't ask the defendant for a little bit of help as to where to find it? Again, it just doesn't make sense and of course this inconsistent testimony between Delvalle and Hernandez as to who went into the house and how long they stayed there and of course the defendant gives an entirely different story from both of them and if it's the defendant's story that's true it's not a surprise that Hernandez or Delvalle can't get their stories together because neither of their stories are true.

37. Delvalle also conceded at the hearing that he did not find any narcotics on the plaintiff's person on the street when he was seized, but rather that he recovered the crack cocaine from plaintiff once he performed a full search of plaintiff at the precinct.

38. Defendant Delvalle's testimony was wholly inconsistent with his sworn

statements made in the criminal complaint where he states that he observed plaintiff in possession of a quantity of crack cocaine at the scene of the arrest on the street.

39. As the Court noted:

The defendant testified that the drugs were recovered at his apartment. Of course Delvalle couldn't say that, he couldn't say that in the Criminal Court complaint because he withheld that from the District Attorney's Office and he couldn't say that in the grand jury because he withheld that information from the DA's office again.

40. The Court's further expressed its concern that the defendants had testified falsely, acknowledging that the fundamental issue concerning the initial stop of plaintiff Davis on the street presented "typical question of credibility that courts have to resolve every day." Justice Goldberg immediately then stated that there were "other issues concerning the police credibility in this case that are really more than technica."¹

41. Justice Goldberg discussed a similar scenario in a prior case before him where the officers had deliberately provided false information, and then stated with respect to defendants Delvalle's and Hernandez's testimony, that:

When the Court has to sit and wait until cross-examination to find out important facts what do you think the reaction of the fact finder is going to be? I know the assistant district attorneys are trained in the grand jury to put in a bare bones case because you don't have to put in more than you need to at a hearing because anything else you need can be used to impeach the witness at trial but that doesn't allow them to conceal pertinent facts from the court and if the officer is telling these facts for the first time on cross-examination, especially facts that he's never told the District Attorney's Office to begin with, it just gives the officer an opportunity to say whatever they want.

42. The Court ultimately held that "the people have not met their burden

going forward here with credible testimony” about the circumstances of the initial stop of the plaintiff, and suppressed all of the evidence and statements procured from plaintiff Davis as a result of defendants’ unlawful conduct.

43. The District Attorney did not appeal the decision, and, on February 17, 2010, consented to the dismissal and sealing of the indictment against plaintiff. All charges were then dismissed and the action terminated in plaintiff’s favor.

44. The defendants either lied to the KCDA, both verbally and in writing, and then continued to lie in their testimony before the Grand Jury and then at the Huntley Hearing, or they were aware that their fellow officers were lying and presenting false factual statements to the KCDA and the court, and failed to intervene in this unconstitutional course of conduct.

45. At no time did defendants take any steps to intervene in, prevent, or otherwise limit the heretofore misconduct engaged in against plaintiff.

46. The individual defendants, including the Doe defendants, intentionally and deliberately gave false statements and/or failed to file accurate or corrective statements, or otherwise failed to report the conduct of the defendants who engaged in the misconduct described herein as required.

47. Defendants gave such false statements and commenced criminal process against the plaintiff in order to cover up their illegal conduct, to justify the unlawful search and seizure of plaintiff, in order to boost their arrest numbers, and to represent that they arrested the individual they claimed had fit plaintiff’s physical description.

48. As a direct and proximate result of defendants' actions, plaintiff Davis was criminally prosecuted for about one year before all of the charges against him were dismissed and the prosecution terminated in his favor.

49. That at all times relevant herein, the defendants were on duty and acting within the scope of their employment, and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

50. At no time was there a lawful basis to stop and question plaintiff Davis, nor was it reasonable for the defendants to believe such cause existed.

51. At no time was there a lawful basis to arrest plaintiff Davis, nor was it reasonable for the defendants to believe such cause existed.

52. At no time did the defendants have any lawful authority -- i.e., a warrant, consent or exigent circumstances -- to enter or search plaintiffs' premises, nor was it reasonable for the defendants to believe that they had such authority.

53. The defendants deliberately lied to and withheld material information from the KCDA, the Grand Jury and the Court, in order to cover up and justify their conduct at the time of and following the arrest, and to ensure that plaintiff Davis was criminally prosecuted based on this arrest, with the intention of securing his criminal conviction.

54. The defendants lacked probable cause to believe that Terrance Davis could be successfully prosecuted, absent the false and fabricated testimony.

55. The defendants' fabrication and withholding of material evidence in

order to obtain the conviction of Terrance Davis was malicious.

56. At all times herein, the defendants were acting in the scope of their employment by the City of New York, acted in furtherance of the interests of the municipal defendant.

FIRST CAUSE OF ACTION

57. Plaintiffs repeat the allegations contained in paragraphs "1" through "56" above as though stated fully herein.

58. Defendants willfully and intentionally seized, arrested, and imprisoned plaintiff Davis without sufficient legal cause and without a reasonable basis to believe such cause existed.

59. Defendants maliciously caused plaintiff Davis to be prosecuted and subjected plaintiff to malicious use and malicious abuse of process.

60. Defendants willfully and intentionally subjected plaintiff to physical force and unlawful searches in excess of what was reasonable under the circumstances, and did so without a reasonable basis to believe that such conduct was appropriate, reasonable, lawful, or necessary.

61. Defendants knowingly and deliberately entered and searched plaintiff Young's home without any lawful authority and without a reasonable basis to believe such authority existed.

62. The defendants further failed to intervene in the aforementioned

misconduct in which their fellow defendants engaged by remaining silent, and failing to take any meaningful steps to correct the defendants' actions, or otherwise protect the plaintiffs from the defendants' actions.

63. By so doing, the defendants, individually and collectively, subjected plaintiff Davis to false arrest and imprisonment, excessive force, unlawful searches of person and property, denial of due process, and malicious prosecution and malicious use and abuse of process, and plaintiff Young to unlawful entry into and search of her property, and thereby violated and helped bring about the violation of plaintiffs' rights under the Fourth and Fourteenth Amendments of the United States Constitution.

64. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff Davis to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of his constitutional rights, and plaintiff Young emotional injuries, mental anguish and the loss of her constitutional rights.

SECOND CAUSE OF ACTION

65. Plaintiff repeats the allegations contained in paragraphs "1" through "64" above as though stated fully herein.

66. Defendant City of New York was responsible for ensuring that reasonable and appropriate levels of supervision were in place within and/or over the NYPD.

67. Defendant had actual or constructive knowledge that there was

inadequate supervision over and/or within the NYPD with respect to its members' abuse of their authority, use of excessive force, abuse of arrest powers, and other blatant violations of the United States Constitution and the rules and regulations of the NYPD. Despite ample notice of inadequate supervision, defendants took no steps to ensure that reasonable and appropriate levels of supervision were put in place to reasonably ensure that NYPD members engaged in police conduct in a lawful and proper manner, including their use of their authority as law enforcement officers with respect to the general public, including, and specifically, the plaintiff herein.

68. The defendant City of New York deliberately and intentionally chose not to take action to correct the chronic, systemic, and institutional misuse and abuse of police authority by its NYPD employees, and thereby deliberately and intentionally adopted, condoned, and otherwise created through deliberate inaction and negligent supervision, an NYPD policy, practice, and custom of utilizing illegal and impermissible searches, arrests, and detentions, and the manufacturing of evidence, in the ordinary course of NYPD business in flagrant disregard of the state and federal constitutions, as well as the Patrol Guide, up to and beyond the plaintiff's arrest.

69. All of the acts and omissions by the individual defendants described above were carried out pursuant to overlapping policies and practices of the municipal defendant in their capacities as police officers and officials pursuant to customs, policies, usages, practices, procedures and rules of the City and the NYPD, all under the supervision of ranking officers of the NYPD.

70. The aforementioned customs, practices, procedures, and rules of the City and the NYPD include, but are not limited to, the following unconstitutional practices:

- a. Using excessive force on individuals, including but not limited to those who have already been handcuffed;
- b. Failing to supervise, train, instruct and discipline police officers and encouraging their misconduct;
- c. Discouraging police officers from reporting the corrupt or unlawful acts of other officers;
- d. Retaliating against officers who report police misconduct; and
- e. Failing to intervene to prevent the above-mentioned practices when such intervention is reasonably available.

71. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following, non-exhaustive list of civil actions:

- a. *Thompson v. City of New York*, 10-CV-3603 (ARR) (SMG) (E.D.N.Y.)
- b. *Lotorto v. City of New York*, 10-CV-1223 (ILG) (JMA) (E.D.N.Y.);
- c. *Zabala v. City of New York*, 37711/2010 (Sup. Ct., Kings Co.);
- d. *Ashe v. City of New York*, 09-CV-9696 (GBD) (THK) (S.D.N.Y.);
- e. *Long v. City of New York*, 09-CV-9216 (AKH) (S.D.N.Y.);
- f. *Moise v. City of New York*, 09-CV-9855 (DC) (JLC) (S.D.N.Y.)
- g. *Taylor-Mickens v. City of New York*, 09-CV-7923 (RWS) (SD.N.Y.)
- h. *Carmody v. City of New York*, 05-CV-8084 (HB), 2006 U.S. Dist. LEXIS 83207
- i. *McMillan v. City of New York*, 04-CV-3990 (FB) (RML)

(E.D.N.Y.);

- j. *Avent v. City of New York*, 04-CV-2451 (CBA) (CLP) (E.D.N.Y.);
- k. *Smith v. City of New York*, 04-CV-1045 (RRM) (JMA) (E.D.N.Y.);
- l. *Powers v. City of New York*, 04-CV-2246 (NGG) (E.D.N.Y.);
- m. *Dotson v. City of New York*, 03-CV-2136 (RMB) (S.D.N.Y.);
- n. *Nonnemann v. City of New York*, 02-CV-I0131 (JSR) (AJP) (S.D.N.Y.);
- o. *Richardson v. City of New York*, 02-CV-3651 (JG) (CLP) (E.D.N.Y.);
- p. *Barry v. New York City Police Department*, 01-CV-10627 (CBM) (S.D.N.Y.);
- q. *Walton v. Safir*, 99-CV-4430 (AKH) (S.D.N.Y.);
- r. *White-Ruiz v. The City of New York*, 93-CV-7233 (DLC) (MHD) (S.D.N.Y.);
- s. *Ariza v. City of New York*, 93-CV-5287 (CPS) (E.D.N.Y.);

72. In an Order dated November 25, 2009, in *Colon v. City of New York*, 09-CV-0008 (E.D.N.Y.), the Hon. Jack B. Weinstein stated:

Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration -- through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department -- there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or

policy by the city approving illegal conduct of the kind now charged.

73. Furthermore, more than half the time that the Civilian Complaint Review Board refers substantiated complaints against officers to the NYPD for disciplinary action, the NYPD either simply issues a verbal warning or drops the charges altogether.

74. It is therefore clear that the municipal defendant has not only tolerated, but actively fostered a lawless atmosphere within the NYPD and that the City of New York was deliberately indifferent to the risk that the inadequate level of supervision would lead to the violation of individuals' constitutional rights in general, and caused the violation of plaintiff's rights in particular.

75. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff Davis to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of his constitutional rights, and plaintiff Young emotional injuries, mental anguish and the loss of her constitutional rights.

DEMAND FOR A JURY TRIAL

Pursuant to Fed. R. Civ. P. 38, plaintiffs hereby demand a jury trial of all issues capable of being determined by a jury.

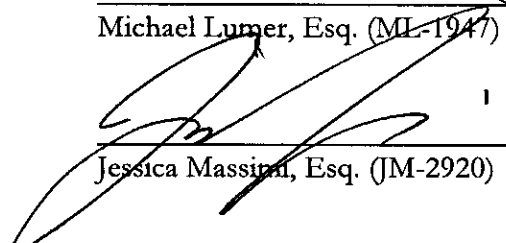
WHEREFORE, the plaintiffs demand judgment against defendants jointly and severally as follows:

- i. on the causes of action one and two, actual and punitive damages in an amount to be determined at trial;
- ii. statutory attorney's fees pursuant to, *inter alia*, 42 U.S.C. §1988 and New York common law, disbursements, and costs of the action; and
- iii. such other relief as the Court deems just and proper.

Dated: Brooklyn, New York
January 30, 2012

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